

Case: 2015CC001274AX

Filed: 04/01/2015

Status: CLOSED **Type:** County Civil **Judge:** CHARLES SNIFFEN

Parties:

Party Type	Name	Gender	DOB
Defendant	MARLIN J YODER Attorney: DEREK WILLIAM EISEMANN		
Plaintiff	COLONIAL MOBILE MANOR LLLP Attorney: WILLIAM C PRICE III		
Plaintiff	COLONIAL MANOR MHC HOLDINGS LLC Attorney: WILLIAM C PRICE III		

Dockets Key:

DIN	View	Date	Description	Pages
1 (1)		04/01/2015	Case 412015CC001274CCAXMA Filed with Clerk on 4/1/2015	
2 (4)		04/01/2015	Assessment 1 assessed at sum \$300.00 AssessmentID 10531640	
3 (5)		04/01/2015	Compliance FILING FEE ASSESSED has been created with due date of 4/2/2015	
4 (8)		04/01/2015	COMPLAINT SEEKING EVICTION, DAMAGES AND OTHER RELIEF	5
5 (9)		04/01/2015	SUMMONS ISSUED TO MARLIN J. YODER A/K/A MARLIN JAY YODER	3
6 (10)		04/01/2015	SUMMONS ISSUED TO ANY UNKNOWN TENANT(S)	3
7 (11)		04/01/2015	RULES & REGULATIONS NOTICE OF VIOLATION OF PARK RULES WITH RIGHT TO CURE ATTACHED TO COMPLAINT	17
8 (12)		04/03/2015	Assessment 2 assessed at sum \$20.00 AssessmentID 10531641	
9 (13)		04/03/2015	Compliance Type FILING FEE ASSESSED was satisfied with Compliance Action - FILING FEE PAID set on 4/3/2015	
10 (14)		04/03/2015	Payment received:Receipt Number C 291924	
11 (15)		04/06/2015	CERTIFICATE OF MAILING	1
12 (16)		04/06/2015	CERTIFICATE OF MAILING	1
13 (17)		04/08/2015	SUMMONS SERVED MARLIN J. YODER A/K/A MARLIN JAY YODER 4/8/2015	4
14 (18)		04/08/2015	SUMMONS SERVED ANY UNKNOWN TENANTS 4/7/2015	4
15 (19)		04/10/2015	NOTICE OF APPEARANCE	2
16 (20)		04/10/2015	MOTION TO STAY PROCEEDINGS PENDING RESOLUTION OF PREVIOUS CASE, AND PAYMENT OF COSTS AND FEES OF PREVIOUSLY FILED ACTION	2
17 (21)		04/10/2015	DEFENDANT, MARLIN J. YODER'S ANSWER, AFFIRMATIVE DEFENSES, NOTICE OF PLEA FOR ATTORNEY'S FEES, AND MOTION TO DETERMINE RENT	7
18 (22)		04/21/2015	NOTICE OF HEARING	1
19 (23)		04/23/2015	PLAINTIFF'S REPLY TO AFFIRMATIVE DEFENSES	2
20 (24)		05/12/2015	ORDER DENYING DEFENDANT'S MOTION TO STAY PROCEEDINGS	1
21 (25)		05/12/2015	ORDER FOR MEDIATION	4
22 (26)		05/15/2015	Assessment 3 assessed at sum \$435.00 AssessmentID 10557004	
23 (27)		05/15/2015	Assessment 4 assessed at sum \$13.05 AssessmentID 10557006	
24 (28)		05/15/2015	Assessment 5 assessed at sum \$1,740.00 AssessmentID 10557014	

DIN	View	Date	Description	Pages
25 (29)		05/15/2015	Assessment 6 assessed at sum \$33.60 AssessmentID 10557017	
26 (30)		05/15/2015	Payment received:Receipt Number C 306123	
27 (31)		05/15/2015	Payment received:Receipt Number C 306125	
28 (32)		05/19/2015	ORDER ON DEFENDANT'S MOTIONS	2
29 (33)		06/03/2015	Assessment 7 assessed at sum \$435.00 AssessmentID 10567850	
30 (34)		06/03/2015	Assessment 8 assessed at sum \$13.05 AssessmentID 10567852	
31 (35)		06/03/2015	Payment received:Receipt Number C 311569	
32 (36)		06/03/2015	Payment received:Receipt Number C 311570	
33 (37)		06/08/2015	NOTICE OF MEDIATION CONFERENCE	1
34 (38)		06/11/2015	DEFENDANT'S FIRST REQUEST FOR PRODUCTION TO PLAINTIFF	5
35 (39)		06/22/2015	PLAINTIFF'S RESPONSE TO DEFENDANT'S FIRST REQUEST FOR PRODUCTION	3
36 (40)		06/22/2015	PLAINTIFF'S NOTICE OF SERVICE OF INTERROGATORIES TO DEFENDANT, MARLIN J. YODER	1
37 (41)		06/22/2015	INITIAL NOTICE OF TAKING DEPOSITION	2
38 (42)		06/22/2015	PLAINTIFF'S REQUEST TO PRODUCE TO DEFENDANT, MARLIN J. YODER	6
39 (43)		07/02/2015	Assessment 9 assessed at sum \$13.05 AssessmentID 10586130	
40 (44)		07/02/2015	Assessment 10 assessed at sum \$435.00 AssessmentID 10586131	
41 (45)		07/02/2015	Payment received:Receipt Number C 321155	
42 (46)		07/02/2015	Payment received:Receipt Number C 321156	
43 (47)		07/14/2015	NOTICE CASE IS AT ISSUE AND READY FOR TRIAL	1
44 (48)		07/28/2015	NOTICE OF SERVING ANSWERS TO INTERROGATORIES DIRECTED TO DEFENDANT, YODER	1
45 (49)		07/28/2015	DEFENDANT'S RESPONSE TO PLAINTIFF'S FIRST REQUEST FOR PRODUCTION	2
46 (50)		08/03/2015	Assessment 11 assessed at sum \$435.00 AssessmentID 10602404	
47 (51)		08/03/2015	Assessment 12 assessed at sum \$13.05 AssessmentID 10602405	
48 (52)		08/03/2015	Payment received:Receipt Number C 330409	
49 (53)		08/03/2015	Payment received:Receipt Number C 330411	
50 (54)		08/11/2015	NOTICE OF HEARING	1
51 (55)		08/19/2015	MOTION TO SUBSTITUTE PLAINTIFF	1
52 (56)		08/26/2015	ORDER GRANTING SUBSTITUTION OF PLAINTIFF	1
53 (57)		09/02/2015	Assessment 13 assessed at sum \$435.00 AssessmentID 10620316	
54 (58)		09/02/2015	Assessment 14 assessed at sum \$13.05 AssessmentID 10620317	
55 (59)		09/02/2015	Payment received:Receipt Number C 339523	
56 (60)		09/02/2015	Payment received:Receipt Number C 339527	
57 (61)		09/29/2015	ORDER SETTING CASE FOR NON JURY TRIAL	2
58 (62)		10/02/2015	Assessment 15 assessed at sum \$435.00 AssessmentID 10636968	
59 (63)		10/02/2015	Assessment 16 assessed at sum \$13.05 AssessmentID 10636970	
60 (64)		10/02/2015	Payment received:Receipt Number C 348975	
61 (65)		10/02/2015	Payment received:Receipt Number C 348976	

DIN	View	Date	Description	Pages
62 (66)		10/26/2015	DEFENDANT'S MOTION TO COMPEL DISCOVERY AND FOR AWARD OF ATTORNEY'S FEES AND COSTS	22
63 (67)		10/27/2015	NOTICE OF HEARING	1
64 (68)		11/04/2015	Assessment 17 assessed at sum \$435.00 AssessmentID 10654747	
65 (69)		11/04/2015	Assessment 18 assessed at sum \$13.05 AssessmentID 10654751	
66 (70)		11/04/2015	Payment received:Receipt Number C 358566	
67 (71)		11/04/2015	Payment received:Receipt Number C 358567	
68 (72)		11/17/2015	PLAINTIFF'S RESPONSE TO DEFENDANT'S MOTION TO COMPEL DISCOVERY AND AWARD OF ATTORNEY'S FEES AND COSTS	3
69 (73)		11/17/2015	SUPPLEMENTAL MEMORANDUM IN SUPPORT OF DEFENDANT'S MOTION TO COMPEL DISCOVERY	6
70 (74)		11/19/2015	NOTICE OF CANCELLATION OF NON-JURY TRIAL	1
71 (75)		11/24/2015	PLAINTIFF'S MEMORANDA IN SUPPORT OF OBJECTION TO PRODUCTION OF TENANT RECORDS AND IN OPPOSITION TO CLAIM FOR AWARD OF ATTORNEY'S FEES AND COSTS	13
72 (76)		12/02/2015	ORDER GRANTING DEFENDANT'S MOTION TO COMPEL	1
73 (77)		12/03/2015	Assessment 19 assessed at sum \$435.00 AssessmentID 10670322	
74 (78)		12/03/2015	Assessment 20 assessed at sum \$13.05 AssessmentID 10670324	
75 (79)		12/03/2015	Payment received:Receipt Number C 366685	
76 (80)		12/03/2015	Payment received:Receipt Number C 366686	
77 (81)		01/04/2016	Assessment 21 assessed at sum \$461.00 AssessmentID 10685578	
78 (82)		01/04/2016	Assessment 22 assessed at sum \$13.83 AssessmentID 10685580	
79 (83)		01/04/2016	Payment received:Receipt Number C 375181	
80 (84)		01/04/2016	Payment received:Receipt Number C 375182	
81 (85)		01/26/2016	DEFENDANT'S MOTION TO COMPEL DISCOVERY PURSUANT TO THE DECEMBER 1, 2015 COURT ORDER	3
82 (86)		01/28/2016	PLAINTIFF'S AMENDED RESPONSE TO DEFENDANT'S FIRST REQUEST FOR PRODUCTION	4
83 (87)		02/03/2016	Assessment 23 assessed at sum \$461.00 AssessmentID 10702572	
84 (88)		02/03/2016	Assessment 24 assessed at sum \$13.83 AssessmentID 10702576	
85 (89)		02/03/2016	Payment received:Receipt Number C 384222	
86 (90)		02/03/2016	Payment received:Receipt Number C 384224	
87 (91)		02/25/2016	NOTICE CASE IS AT ISSUE AND READY FOR TRIAL	1
88 (92)		03/03/2016	Assessment 25 assessed at sum \$13.83 AssessmentID 10718152	
89 (93)		03/03/2016	Assessment 26 assessed at sum \$461.00 AssessmentID 10718154	
90 (94)		03/03/2016	Payment received:Receipt Number C 393869	
91 (95)		03/03/2016	Payment received:Receipt Number C 393870	
92 (96)		03/29/2016	ORDER SETTING CASE FOR NON JURY TRIAL	2
93 (97)		04/04/2016	Assessment 27 assessed at sum \$461.00 AssessmentID 10734218	
94 (98)		04/04/2016	Assessment 28 assessed at sum \$13.83 AssessmentID 10734220	
95 (99)		04/04/2016	Payment received:Receipt Number C 403164	
96 (100)		04/04/2016	Payment received:Receipt Number C 403165	

DIN	View	Date	Description	Pages
97 (101)		04/08/2016	DEFENDANT'S MOTION FOR PARTIAL SUMMARY JUDGMENT	5
98 (102)		04/15/2016	DEFENDANT'S AMENDED RESPONSE TO PLAINTIFF'S FIRST REQUEST FOR PRODUCTION	4
99 (103)		04/15/2016	DEFENDANT'S RESPONSES TO PLAINTIFF'S FIRST SET OF INTERROGATORIES	3
100 (104)		04/25/2016	SUMMONS SERVED TO SUSAN FERANEC 04-21-2016	3
101 (105)		04/25/2016	SUMMONS SERVED TO JOSEPH NICHOLS 04-21-2016	3
102 (106)		05/02/2016	NOTICE OF FILING AUTHORIZATION OF CORPORATE OFFICER	2
103 (107)		05/03/2016	Assessment 29 assessed at sum \$461.00 AssessmentID 10750790	
104 (108)		05/03/2016	Assessment 30 assessed at sum \$13.83 AssessmentID 10750791	
105 (109)		05/03/2016	Payment received:Receipt Number C 412123	
106 (110)		05/03/2016	Payment received:Receipt Number C 412124	
107 (111)		05/03/2016	DEFENDANTS EXHIBIT C	1
108 (112)		05/03/2016	PLAINTIFFS EXHIBIT 3	2
109 (113)		05/03/2016	PLAINTIFFS EXHIBIT 10	3
110 (114)		05/03/2016	PLAINTIFFS EXHIBIT 4	2
111 (115)		05/03/2016	PLAINTIFFS EXHIBIT 7	7
112 (116)		05/03/2016	PLAINTIFFS EXHIBIT 9	7
113 (117)		05/03/2016	PLAINTIFFS EXHIBIT 6	6
114 (118)		05/03/2016	PLAINTIFFS EXHIBIT 1	10
115 (119)		05/03/2016	PLAINTIFFS EXHIBIT 12	15
116 (120)		05/03/2016	PLAINTIFFS EXHIBIT 5	3
117 (121)		05/03/2016	PLAINTIFFS EXHIBIT 11	1
118 (122)		05/03/2016	PLAINTIFFS EXHIBIT 8	6
119 (136)		05/03/2016	PLAINTIFFS EXHIBIT 2	3
120 (123)		05/10/2016	ORDER SHEDULING CONTINUED FINAL HEARING	1
121 (124)		05/25/2016	PLAINTIFFS EXHIBIT 13 (DVD COLONIAL MOBILE MANOR)	1
122 (125)		06/03/2016	Assessment 31 assessed at sum \$461.00 AssessmentID 10767271	
123 (126)		06/03/2016	Assessment 32 assessed at sum \$13.83 AssessmentID 10767274	
124 (127)		06/03/2016	Payment received:Receipt Number C 420627	
125 (128)		06/03/2016	Payment received:Receipt Number C 420629	
126 (129)		06/17/2016	NOTICE OF CANCELLATION OF HEARING	1
127 (130)		06/30/2016	STIPULATION FOR ORDER DIRECTING CLERK TO DISBURSE ALL FUNDS HELD IN THE REGISTRY OF THE COURT	1
128 (131)		07/05/2016	ORDER DIRECTING CLERK TO DISBURSE ALL FUNDS HELD IN THE REGISTRY OF THE COURT	1
129 (132)		07/14/2016	REQUEST FOR PAYMENT TO PAYEE COLONIAL MANOR MHC HOLDINGS LLC C/O - WILLIAM C PRICE III, ESQ FOR \$ 7090.00 - FORDWARDED TO CLERKS ACCOUNTING	1
130 (133)		07/20/2016	PAYMENT OF REGISTRY DEPOSIT PAYABLE TO COLONIAL MANOR MHC HOLDINGS LLC C/O WILLIAM C PRICE ESQ \$7551.00	
131 (134)		08/03/2016	NOTICE OF VOLUNTARY DISMISSAL	1

DIN	View	Date	Description	Pages
132 (137)		12/06/2016	NOTICE OF INTENTION TO DESTROY OR DISPOSE OF EXHIBITS	1
133 (138)		12/06/2016	Compliance NDD LETTER SENT has been created with due date of 1/5/2017	
134 (139)		01/18/2017	Compliance Type NDD LETTER SENT was satisfied with Compliance Action - EVIDENCE DESTROYED set on 1/18/2017	

Filings

Filing Date

04/01/2015

Filing Type

zEVICT-\$2501-\$15000

Claim Amount

\$0.00

Cross Claim Amount

\$0.00

Counter Claim Amount

\$0.00

Judgment Amount

\$0.00

Filing Date

11/01/2022

Filing Type

Rule2.420-CaseAccess

Claim Amount

\$0.00

Cross Claim Amount

\$0.00

Counter Claim Amount

\$0.00

Judgment Amount

\$0.00

Events:

1: 05/08/2015 at 09:30AM - JACS-STAY

Location: MANATEE COUNTY JUDICIAL CENTER

Room: HEARING ROOM B - 9TH FLOOR

Judge: SNIFFEN, CHARLES

2: 09/01/2015 at 10:30AM - JACS-STATUS CONF

Location: MANATEE COUNTY JUDICIAL CENTER

Room: HEARING ROOM B - 9TH FLOOR

Judge: SNIFFEN, CHARLES

3: 11/17/2015 at 10:15AM - JACS-COMPEL

Location: MANATEE COUNTY JUDICIAL CENTER

Room: HEARING ROOM B - 9TH FLOOR

Judge: SNIFFEN, CHARLES

4: 11/24/2015 at 09:30AM - JACS-FINAL HEARING

Location: MANATEE COUNTY JUDICIAL CENTER

Room: COURTROOM 4-C

Judge: SNIFFEN, CHARLES

Result: CANCELLED-JACS

5: 05/03/2016 at 09:00AM - JACS-FINAL HEARING

Location: MANATEE COUNTY JUDICIAL CENTER

Room: HEARING ROOM B - 9TH FLOOR

Judge: SNIFFEN, CHARLES

Result: CANCELLED-JACS

6: 05/03/2016 at 09:00AM - JACS-FINAL HEARING

Location: MANATEE COUNTY JUDICIAL CENTER

Room: COURTROOM 5-D

Judge: SNIFFEN, CHARLES

7: 06/17/2016 at 01:30PM - JACS-FINAL HEARING

Location: MANATEE COUNTY JUDICIAL CENTER

Room: COURTROOM 5-D

Judge: SNIFFEN, CHARLES

Result: CANCELLED-JACS

Receipts:

Receipt Date	Receipt Number	Tender Amount	Voided Amount	Voided
4/3/2015	291924	\$320.00	-	
5/15/2015	306123	\$1,740.00	-	
5/15/2015	306125	\$33.60	-	
6/3/2015	311569	\$435.00	-	
6/3/2015	311570	\$13.05	-	
7/2/2015	321155	\$13.05	-	
7/2/2015	321156	\$435.00	-	
8/3/2015	330409	\$435.00	-	
8/3/2015	330411	\$13.05	-	
9/2/2015	339523	\$435.00	-	
9/2/2015	339527	\$13.05	-	
10/2/2015	348975	\$435.00	-	
10/2/2015	348976	\$13.05	-	
11/4/2015	358566	\$435.00	-	
11/4/2015	358567	\$13.05	-	
12/3/2015	366685	\$435.00	-	
12/3/2015	366686	\$13.05	-	
1/4/2016	375181	\$461.00	-	
1/4/2016	375182	\$13.83	-	
2/3/2016	384222	\$461.00	-	
2/3/2016	384224	\$13.83	-	

Receipt Date	Receipt Number	Tender Amount	Voided Amount	Voided
3/3/2016	393869	\$461.00	-	
3/3/2016	393870	\$13.83	-	
4/4/2016	403164	\$461.00	-	
4/4/2016	403165	\$13.83	-	
5/3/2016	412123	\$461.00	-	
5/3/2016	412124	\$13.83	-	
6/3/2016	420627	\$461.00	-	
6/3/2016	420629	\$13.83	-	
Totals	29 receipt(s)	\$8,078.93	\$0.00	

Assessments:

Account Group	Description	Originally Assessed	Paid	Dismissed	Due
* MULTIPLE ACCOUNTS *	*** MULTIPLE ACCOUNTS ***	\$7,986.00	(\$7,551.00)	(\$435.00)	-
CLAIMS > \$2500 - CC	CLAIMS > \$2500 < \$5000	\$300.00	(\$300.00)	-	-
REGFEE1	REGISTRY FEE UP TO THE FIRST \$500.00 - COUNTY	\$202.38	(\$189.33)	(\$13.05)	-
REGFEE2	REGISTRY FEE FOR \$501.00 AND OVER - COUNTY	\$18.60	(\$18.60)	-	-
SUMMONS - CA	SUMMONS - CIRCUIT CIVIL	\$20.00	(\$20.00)	-	-
5 Account Group(s)		\$8,526.98	(\$8,078.93)	(\$448.05)	\$0.00

Bonds:

Bond Type	Active Amount
0 Bond(s)	\$0.00

Registry:

\$0.00